

The Complaint alleges the parties own an undivided 50% interest each in the Property. (Compl., ¶5.) Defendants seek to sell the Property. (*Id.* at ¶10.) Plaintiff seeks an accounting and equitable adjustment of the parties' interests to reflect Plaintiff's expenditures and contributions including the purchase of the 5-acre lot on which the Property sits, payment of delinquent taxes, construction costs, and adjustments relating to the November 2016 first trust deed including sums of that loan used by Defendant personally. (*Id.* at ¶17.) The Complaint sufficiently pleads a claim for equitable accounting and reimbursement.

3rd COA – Injunctive and Equitable Relief - Although strictly speaking, an injunction is a remedy rather than a cause of action, a cause of action is also commonly used in pleading as applying only to the relief sought, even though separately pleaded claims have origin in the same right or obligation. (*McDowell v. Watson* (1997) 59 Cal.App.4th 1155, 1159.) The elements of a cause of action for injunctive relief are (1) a tort or other wrongful act constituting a cause of action; and (2) irreparable injury, i.e., a factual showing that the wrongful act constitutes an actual or threatened injury to property or personal rights which cannot be compensated by an ordinary damage award." (*Brownsfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410.) To state a cause of action for an injunction, the complaint must plead facts that warrant injunctive relief. (*San Francisco v. Market S.R. Co.* (1950) 95 Cal.App.2d 648, 656.) The Complaint alleges Plaintiff had the home built for the benefit of his children, has continuously resided at the Property since completion of construction, and now seeks injunctive relief to prevent the sale of the Property. (Compl., ¶¶6.) Plaintiff seeks to remain in the home. (*Id.* at ¶11.) Where the Complaint falls short is it fails to allege irreparable injury, if any. However, this appears curable. Thus, the Court will SUSTAIN the demurrer with leave to amend.

7.

CASE #	CASE NAME	HEARING NAME
CVME2600233	SIGEL VS SIGEL	MOTION TO STAY PARTITION

Tentative Ruling: Motion is denied. Code of Civil Procedure section 872.710, subdivision (b), states that partition as to concurrent interests in the property shall be as of right unless barred by a valid waiver.

Here, Plaintiff does not dispute Defendant's ownership in the Property and is prepared to compensate Defendant for her share of the property's equity. (Mot., pg. 2:23-25.) There is no evidence that Defendant waived her right to partition.

Plaintiff, however, fails to provide any legal authority for the relief sought. If anything, Plaintiff cites to section 872.710 acknowledging Defendant's right to seek partition of property. Plaintiff argues partition proceedings are equitable in nature and courts retain authority to structure relief in a manner that protects the interests of the parties. However, again, Plaintiff does not provide legal authority for the foregoing argument. A point merely asserted without any authority for the proposition is deemed without foundation and requires no discussion. (See *Allen v. Smith* (2002) 94 Cal.App.4th 1270, 1281.) "[E]very brief should contain a legal argument with citation of authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration." (*Sprague v. Equifax, Inc.* (1985) 166 Cal.App.3d 1012, 1050.)